

		damages the court allows the defendant to recover in the event the injunction is determined to have been unjustifiable. (<i>Abba Rubber Co. v. Sequist</i> (1991) 235 Cal.App.3d 1, 14 [finding \$1,000 bond inadequate where defendant shows possible lost profits of \$315,000].) These may include defense costs in those cases where attorney’s fees are recoverable. (<i>Ibid.</i>) While a defendant’s failure to request a bond does not waive the requirement does not waive the bond requirement (<i>Abba Rubber Co. v. Sequist</i> (1991) 235 Cal.App.3d 1, 10), the bond requirement may be affirmatively waived or forfeited. (<i>Smith v. Adventist Health System/West</i> (2010) 182 Cal.App.4th 729, 740, citing Civil Code section 3513 [providing that “[a]nyone may waive the advantage of a law intended solely for his benefit”], Code Civ. Proc., § 995.230 [providing the beneficiary of a bond may in writing consent to a bond in an amount less than the amount required by statute or may waive the bond].) Here, Plaintiffs argue Defendants waived their right to demand a bond. Section 10.10 of the SPA provides in relevant part that: “the parties shall be entitled to enforce any provision of this Agreement by a decree of specific performance and to temporary, preliminary, and permanent injunctive relief from a court of competent jurisdiction to prevent breaches or threatened breaches of the terms of this Agreement, without posting any bond or other undertaking” (SPA at § 10.10.) The court finds a bond in the amount of \$90,000 would reasonably protect Defendants against damages caused by the preliminary injunction. Plaintiffs Shue and Clouser SHALL file and serve proof of undertaking in the amount of \$90,000. Plaintiffs to give notice.
4	Adjemian vs. Gallo	Defendants Rafael Gallo’s Motion for Summary Adjudication is DENIED. Defendant Gallo moves for summary adjudication on the issue of whether or not Plaintiff is precluded from recovering attorney’s fees due to failure to meet condition precedent (mediation) contained in the Residential Purchase Agreement. “A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, . . . or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. (Code Civ. Proc., § 437c, subd. (f)(1).)